

Court No. - 21

Case :- WRIT - C No. - 14605 of 2024

Petitioner :- Uttam Singh @ Alok Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Priya Ranjan Rai

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. The brief holder of Shri Udit Chandra, counsel for the Electricity Department prays for time to complete his instruction.
2. List as fresh on 15 May 2024.

Order Date :- 3.5.2024

Mukesh Kr.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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1. Short counter affidavit filed today is taken on record.
2. Heard learned counsel for the petitioner and Sri Nitesh Patel holding brief of Sri Udit Chandra, learned counsel for respondents no. 2 and 3.
3. The instant petition is directed against the recovery certificate dated 26.10.2023 issued by respondent no. 3 for recovery of electricity dues from the petitioner in case of assessment under Section 126 of the Electricity Act, 2003.
4. Counsel for the respondent Electricity Department states that the impugned recovery certificate has been withdrawn alongwith the order of final assessment and that the respondents will pass a fresh order after providing opportunity of hearing to the petitioner. An affidavit to the said effect has also been filed.
5. Accordingly, the petition is **disposed of** with liberty to the Electricity Department to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2006.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.5.2024/Ruhi H.